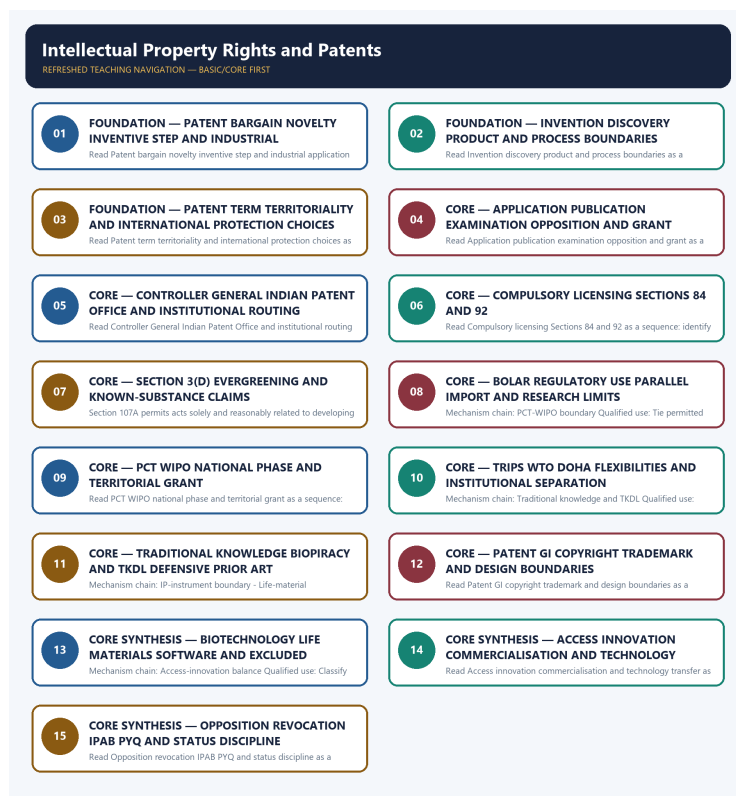


COMPLETE LEARNING SESSION

Intellectual Property Rights and Patents - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Intellectual Property Rights and Patents - Learner-v2

Complete Learning Session

Authoring-only generation: 2026-09-04. No PDF was rendered and no tracker or index was mutated.

SOURCE, PROGRESSION AND CURRENT-LINKAGE AUDIT

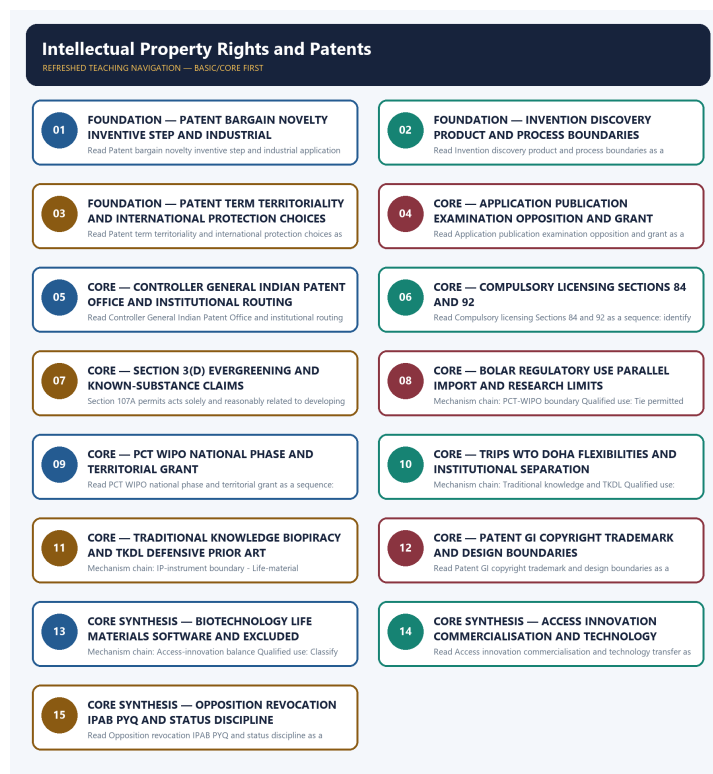
- **Generation date:** 2026-09-04.
- **Repository-first evidence:** the Basic owner is taught first and preserved in full; the Advanced owner is retained only in the optional final teaching block.
- **OCR evidence:** Repository Markdown was primary. OCR-searchable official UPSC papers were supplementary only for printed routed demands. No answer key, performance value, procurement outcome, operational deployment, programme target or technology milestone was inferred.
- **Qdrant:** not used; repository Markdown and available OCR context were sufficient.
- **PYQ integrity:** Audited ledgers route the 2019 Prelims demand on the Indian Patents Act and IPAB, the 2019 GS-III traditional-knowledge protection demand and the 2024 GS-III life-material IPR and commercialisation demand to this owner. Three representative cards preserve those routes without inventing an objective key, a patent count or a case outcome.
- **Live-link boundary:** Official IP India, WIPO, WTO and TKDL-source attempts were made on 2026-09-04. They confirm the patentability criteria, limited territorial patent bargain, PCT-national-phase boundary and TRIPS-WTO architecture where substantive text was retrieved. Exact section claims remain owner-bounded; no filing/grant count, commercialisation rate, case outcome or blanket software rule is asserted.
- **Fact/inference discipline:** no current-affairs item, PYQ wording, figure or quotation is invented.

LIVE OFFICIAL-SOURCE ATTEMPT LOG

The checks below were made on 2026-09-04. Substantive official text is used only for the proposition it supports; title-only, blocked or thin pages are recorded and supply no factual claim.

- <https://ipindia.gov.in/basics-of-patents> - fetched 2026-09-04; substantive IP India text confirmed the limited statutory patent right, product-or-process scope, novelty, inventive step, industrial application and the section 3/4 exclusion boundary. It supplied no filing, grant, commercialisation or litigation count.
- <https://ipindia.gov.in/pages/patents/chapter> - fetched 2026-09-04; the official page identified the Patents Act, 1970 and warned that Gazette text prevails over the e-version. No unverified amendment effect, current form deadline or procedural statistic was imported.
- <https://ipindia.gov.in/storage/uploads/docs-operator/73b5bf10-b04e-4f45-abef-87ff117315dc.pdf> - attempted 2026-09-04; the official PDF was retrievable only as raw PDF bytes through the live tool. Exact section propositions are therefore retained only where already supported by the audited Basic and Advanced owners.
- <https://www.wipo.int/en/web/pct-system/faqs/faqs> - fetched 2026-09-04; substantive WIPO text confirmed that the PCT is an international application route, publication normally follows the 18-month point, national or regional offices control grant, and patents remain territorial. No 'world patent' claim was imported.
- https://www.wto.org/english/tratop_e/trips_e/intel2_e.htm - fetched 2026-09-04; substantive WTO text confirmed TRIPS minimum standards, enforcement and WTO dispute-settlement architecture across named IP fields. TRIPS was not described as a filing office or patent grant.
- <https://www.tkd1.res.in/tkd1/langdefault/common/Abouttkd1.asp> - attempted 2026-09-04; retrieval failed at the transport layer. The CSIR-Ministry of Ayush defensive-prior-art proposition is retained from the audited owner, with no database-size or patent-outcome count.

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - FOUNDATION - PATENT BARGAIN NOVELTY INVENTIVE STEP AND INDUSTRIAL APPLICATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Technical definition: Read Patent bargain novelty inventive step and industrial application as a sequence: identify Patent bargain and criteria, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

MUST-WRITE KEYWORDS

- FOUNDATION
- Patent bargain novelty inventive step
- industrial application
- Mechanism chain
- Qualified use
- A patent

How to use them: Frame the answer through FOUNDATION; define Patent bargain novelty inventive step, connect industrial application with Mechanism chain to explain the mechanism, and use Qualified use for the decisive comparison or qualification.

VISUAL FIRST

PATENT BARGAIN NOVELTY INVENTIVE STEP AND INDUSTRIAL APPLICATION

01. Patent bargain and criteria

|
v

02. Invention-discovery boundary

STATUS / CATEGORY FIREWALL -> Do not treat novelty, inventive step and industrial applicability as optional alternatives.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

SIMPLE SYSTEM EXAMPLE

Read Patent bargain novelty inventive step and industrial application as a sequence: identify Patent bargain and criteria, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not treat novelty, inventive step and industrial applicability as optional alternatives. This keeps Patent bargain and criteria and Invention-discovery boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.
- Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

EXAMINER CAUTION

- Do not treat novelty, inventive step and industrial applicability as optional alternatives.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Open with the disclosure-for-exclusion bargain and apply all three criteria.

MINI RECAP

- **Mechanism chain:** Patent bargain and criteria -> Invention-discovery boundary
- **Qualified use:** Open with the disclosure-for-exclusion bargain and apply all three criteria.

CLOSING RECALL FLOW - FOUNDATION - PATENT BARGAIN NOVELTY INVENTIVE STEP AND INDUSTRIAL APPLICATION

START / CONCEPT: FOUNDATION - Patent bargain novelty inventive step and industrial application

|
v

EXACT TERMS: FOUNDATION · Patent bargain novelty inventive step · industrial application ·
Mechanism chain · Qualified use · A patent

|
v

MECHANISM / ARGUMENT: Read Patent bargain novelty inventive step and industrial application as a sequence: identify Patent bargain and criteria, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

|
v

CONSEQUENCE / CONTRAST: The decisive boundary is Do not treat novelty, inventive step and industrial applicability as optional alternatives.

|
v

UPSC TRAP / ANSWER-USE: Do not treat novelty, inventive step and industrial applicability as optional alternatives.

|
v

ANSWER-GRABBING FORMULATION: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

SESSION 2 - FOUNDATION - INVENTION DISCOVERY PRODUCT AND PROCESS BOUNDARIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The decisive boundary is Do not call a discovery patentable merely because it is useful.

Technical definition: Read Invention discovery product and process boundaries as a sequence: identify Product-process boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Invention discovery product and process boundaries as a sequence: identify Product-process boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- FOUNDATION
- Invention discovery product
- process boundaries
- Mechanism chain
- Qualified use
- Read Invention

How to use them: Frame the answer through FOUNDATION; define Invention discovery product, connect process boundaries with Mechanism chain to explain the mechanism, and use Qualified use for the decisive comparison or qualification.

VISUAL FIRST

INVENTION DISCOVERY PRODUCT AND PROCESS BOUNDARIES

01. Product-process boundary

STATUS / CATEGORY FIREWALL -> Do not call a discovery patentable merely because it is useful.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

SIMPLE SYSTEM EXAMPLE

Read Invention discovery product and process boundaries as a sequence: identify Product-process boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not call a discovery patentable merely because it is useful. This keeps Product-process boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

EXAMINER CAUTION

- Do not call a discovery patentable merely because it is useful.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Classify discovery, product and process before discussing legal protection.

MINI RECAP

- **Mechanism chain:** Product-process boundary
- **Qualified use:** Classify discovery, product and process before discussing legal protection.

CLOSING RECALL FLOW - FOUNDATION - INVENTION DISCOVERY PRODUCT AND PROCESS BOUNDARIES

START / CONCEPT: FOUNDATION - Invention discovery product and process boundaries

|
v

EXACT TERMS: FOUNDATION • Invention discovery product • process boundaries • Mechanism chain • Qualified use • Read Invention

|
v

MECHANISM / ARGUMENT: Mechanism chain: Product-process boundary Qualified use: Classify discovery, product and process before discussing legal protection.

|
v

CONSEQUENCE / CONTRAST: The decisive boundary is Do not call a discovery patentable merely because it is useful.

|
v

UPSC TRAP / ANSWER-USE: Do not call a discovery patentable merely because it is useful.

|
v

ANSWER-GRABBING FORMULATION: Read Invention discovery product and process boundaries as a sequence: identify Product-process boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 3 - FOUNDATION - PATENT TERM TERRITORIALITY AND INTERNATIONAL PROTECTION CHOICES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Technical definition: Read Patent term territoriality and international protection choices as a sequence: identify Term-territoriality boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Patent term territoriality and international protection choices as a sequence: identify Term-territoriality boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- FOUNDATION
- Patent term territoriality
- international protection choices
- Mechanism chain
- Qualified use
- The patent term

How to use them: Frame the answer through FOUNDATION; define Patent term territoriality, connect international protection choices with Mechanism chain to explain the mechanism, and use Qualified use for the decisive comparison or qualification.

VISUAL FIRST

PATENT TERM TERRITORIALITY AND INTERNATIONAL PROTECTION CHOICES

01. Term-territoriality boundary

STATUS / CATEGORY FIREWALL -> Do not merge product protection with a protected manufacturing process.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

SIMPLE SYSTEM EXAMPLE

Read Patent term territoriality and international protection choices as a sequence: identify Term-territoriality boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not merge product protection with a protected manufacturing process. This keeps Term-territoriality boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

EXAMINER CAUTION

- Do not merge product protection with a protected manufacturing process.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** State term and territoriality before selecting direct, Paris or PCT routes.

MINI RECAP

- **Mechanism chain:** Term-territoriality boundary
- **Qualified use:** State term and territoriality before selecting direct, Paris or PCT routes.

CLOSING RECALL FLOW - FOUNDATION - PATENT TERM TERRITORIALITY AND INTERNATIONAL PROTECTION CHOICES

START / CONCEPT: FOUNDATION - Patent term territoriality and international protection choices
|
v
EXACT TERMS: FOUNDATION · Patent term territoriality · international protection choices · Mechanism chain · Qualified use · The patent term
|
v
MECHANISM / ARGUMENT: Mechanism chain: Term-territoriality boundary Qualified use: State term and territoriality before selecting direct, Paris or PCT routes.
|
v
CONSEQUENCE / CONTRAST: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.
|
v
UPSC TRAP / ANSWER-USE: The decisive boundary is Do not merge product protection with a protected manufacturing process.
|
v
ANSWER-GRABBING FORMULATION: Read Patent term territoriality and international protection choices as a sequence: identify Term-territoriality boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 4 - CORE - APPLICATION PUBLICATION EXAMINATION OPPOSITION AND GRANT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Technical definition: Read Application publication examination opposition and grant as a sequence: identify Application-publication-examination-grant ladder, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

MUST-WRITE KEYWORDS

- Application publication examination opposition
- grant
- Mechanism chain
- Qualified use
- Filing
- Read Application

How to use them: Frame the answer through Application publication examination opposition; define grant, connect Mechanism chain with Qualified use to explain the mechanism, and use Filing for the decisive comparison or qualification.

VISUAL FIRST

APPLICATION PUBLICATION EXAMINATION OPPOSITION AND GRANT

01. Application-publication-examination-grant ladder

STATUS / CATEGORY FIREWALL -> Do not call a 20-year territorial patent perpetual or global.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

SIMPLE SYSTEM EXAMPLE

Read Application publication examination opposition and grant as a sequence: identify Application-publication-examination-grant ladder, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not call a 20-year territorial patent perpetual or global. This keeps Application-publication-examination-grant ladder in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

EXAMINER CAUTION

- Do not call a 20-year territorial patent perpetual or global.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Move through every procedural rung without upgrading the status verb.

MINI RECAP

- **Mechanism chain:** Application-publication-examination-grant ladder
- **Qualified use:** Move through every procedural rung without upgrading the status verb.

CLOSING RECALL FLOW - CORE - APPLICATION PUBLICATION EXAMINATION OPPOSITION AND GRANT

START / CONCEPT: CORE - Application publication examination opposition and grant

|
v

EXACT TERMS: Application publication examination opposition · grant · Mechanism chain · Qualified use · Filing · Read Application

|
v

MECHANISM / ARGUMENT: Read Application publication examination opposition and grant as a sequence: identify Application-publication-examination-grant ladder, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

|
v

CONSEQUENCE / CONTRAST: The decisive boundary is Do not call a 20-year territorial patent perpetual or global.

|
v

UPSC TRAP / ANSWER-USE: Do not call a 20-year territorial patent perpetual or global.

|
v

ANSWER-GRABBING FORMULATION: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

SESSION 5 - CORE - CONTROLLER GENERAL INDIAN PATENT OFFICE AND INSTITUTIONAL ROUTING

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Technical definition: Read Controller General Indian Patent Office and institutional routing as a sequence: identify Controller and Patent Office roles, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

MUST-WRITE KEYWORDS

- **Controller General Indian Patent Office**
- **institutional routing**
- **Mechanism chain**
- **Qualified use**
- **The Controller General**
- **Patents**

How to use them: Frame the answer through Controller General Indian Patent Office; define institutional routing, connect Mechanism chain with Qualified use to explain the mechanism, and use The Controller General for the decisive comparison or qualification.

VISUAL FIRST

CONTROLLER GENERAL INDIAN PATENT OFFICE AND INSTITUTIONAL ROUTING

01. Controller and Patent Office roles

STATUS / CATEGORY FIREWALL -> Do not convert filing, publication or examination into grant.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

SIMPLE SYSTEM EXAMPLE

Read Controller General Indian Patent Office and institutional routing as a sequence: identify Controller and Patent Office roles, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not convert filing, publication or examination into grant. This keeps Controller and Patent Office roles in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

EXAMINER CAUTION

- Do not convert filing, publication or examination into grant.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Separate policy, administration, registry and appellate functions.

MINI RECAP

- **Mechanism chain:** Controller and Patent Office roles
- **Qualified use:** Separate policy, administration, registry and appellate functions.

CLOSING RECALL FLOW - CORE - CONTROLLER GENERAL INDIAN PATENT OFFICE AND INSTITUTIONAL ROUTING

START / CONCEPT: CORE - Controller General Indian Patent Office and institutional routing

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EXACT TERMS: Controller General Indian Patent Office · institutional routing · Mechanism chain · Qualified use · The Controller General · Patents

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v

MECHANISM / ARGUMENT: Read Controller General Indian Patent Office and institutional routing as a sequence: identify Controller and Patent Office roles, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

|

v

CONSEQUENCE / CONTRAST: Mechanism chain: Controller and Patent Office roles Qualified use: Separate policy, administration, registry and appellate functions.

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v

UPSC TRAP / ANSWER-USE: The decisive boundary is Do not convert filing, publication or examination into grant.

|

v

ANSWER-GRABBING FORMULATION: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

SESSION 6 - CORE - COMPULSORY LICENSING SECTIONS 84 AND 92

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

Technical definition: Read Compulsory licensing Sections 84 and 92 as a sequence: identify Compulsory-licensing boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

MUST-WRITE KEYWORDS

- Compulsory licensing Sections 84
- Mechanism chain
- Qualified use
- Section
- India
- Read Compulsory

How to use them: Frame the answer through Compulsory licensing Sections 84; define Mechanism chain, connect Qualified use with Section to explain the mechanism, and use India for the decisive comparison or qualification.

VISUAL FIRST

COMPULSORY LICENSING SECTIONS 84 AND 92

01. Compulsory-licensing boundary

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02. Section 3(d) two-limb filter

STATUS / CATEGORY FIREWALL -> Do not make CGPDTM the administrator of copyright or plant varieties.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

SIMPLE SYSTEM EXAMPLE

Read Compulsory licensing Sections 84 and 92 as a sequence: identify Compulsory-licensing boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not make CGPDTM the administrator of copyright or plant varieties. This keeps Compulsory-licensing boundary and Section 3(d) two-limb filter in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.
- Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

EXAMINER CAUTION

- Do not make CGPDTM the administrator of copyright or plant varieties.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** State trigger, timing and grounds before evaluating public-interest use.

MINI RECAP

- **Mechanism chain:** Compulsory-licensing boundary -> Section 3(d) two-limb filter
- **Qualified use:** State trigger, timing and grounds before evaluating public-interest use.

CLOSING RECALL FLOW - CORE - COMPULSORY LICENSING SECTIONS 84 AND 92

START / CONCEPT: CORE - Compulsory licensing Sections 84 and 92

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EXACT TERMS: Compulsory licensing Sections 84 · Mechanism chain · Qualified use · Section · India ·
Read Compulsory

|

v

MECHANISM / ARGUMENT: Read Compulsory licensing Sections 84 and 92 as a sequence: identify
Compulsory-licensing boundary, follow the named mechanism to its user or output, and stop at the
last verified status rather than assuming the next stage.

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CONSEQUENCE / CONTRAST: Section 3(d) treats a new property or new use of a known substance as no
invention and allows a new form of a known substance only where it differs significantly in
properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

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UPSC TRAP / ANSWER-USE: The decisive boundary is Do not make CGPDTM the administrator of copyright
or plant varieties.

|

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ANSWER-GRABBING FORMULATION: Section 84 permits an application after three years from grant where
public requirements are unmet, the invention is not reasonably affordable or it is not worked in
India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use
circumstances.

SESSION 7 - CORE - SECTION 3(D) EVERGREENING AND KNOWN-SUBSTANCE CLAIMS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Read Section 3(d) evergreening and known-substance claims as a sequence: identify Bolar and research discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

Technical definition: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Section 3(d) evergreening and known-substance claims as a sequence: identify Bolar and research discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- **Section 3(d) evergreening**
- **known-substance claims**
- **Mechanism chain**
- **Qualified use**
- **Section**
- **Bolar**

How to use them: Frame the answer through Section 3(d) evergreening; define known-substance claims, connect Mechanism chain with Qualified use to explain the mechanism, and use Section for the decisive comparison or qualification.

VISUAL FIRST

SECTION 3(D) EVERGREENING AND KNOWN-SUBSTANCE CLAIMS

01. Bolar and research discipline

STATUS / CATEGORY FIREWALL -> Do not describe compulsory licensing as automatic cancellation of the patent.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

SIMPLE SYSTEM EXAMPLE

Read Section 3(d) evergreening and known-substance claims as a sequence: identify Bolar and research discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not describe compulsory licensing as automatic cancellation of the patent. This keeps Bolar and research discipline in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

EXAMINER CAUTION

- Do not describe compulsory licensing as automatic cancellation of the patent.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Apply the new-use and new-form limbs separately and preserve efficacy logic.

MINI RECAP

- **Mechanism chain:** Bolar and research discipline
- **Qualified use:** Apply the new-use and new-form limbs separately and preserve efficacy logic.

CLOSING RECALL FLOW - CORE - SECTION 3(D) EVERGREENING AND KNOWN-SUBSTANCE CLAIMS

START / CONCEPT: CORE - Section 3(d) evergreening and known-substance claims

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v

EXACT TERMS: Section 3(d) evergreening · known-substance claims · Mechanism chain · Qualified use · Section · Bolar

|

v

MECHANISM / ARGUMENT: Mechanism chain: Bolar and research discipline Qualified use: Apply the new-use and new-form limbs separately and preserve efficacy logic.

|

v

CONSEQUENCE / CONTRAST: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

|

v

UPSC TRAP / ANSWER-USE: The decisive boundary is Do not describe compulsory licensing as automatic cancellation of the patent.

|

v

ANSWER-GRABBING FORMULATION: Read Section 3(d) evergreening and known-substance claims as a sequence: identify Bolar and research discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 8 - CORE - BOLAR REGULATORY USE PARALLEL IMPORT AND RESEARCH LIMITS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Read Bolar regulatory use parallel import and research limits as a sequence: identify PCT-WIPO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

Technical definition: Mechanism chain: PCT-WIPO boundary Qualified use: Tie permitted conduct to regulatory submission and reject an unlimited research claim.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Bolar regulatory use parallel import and research limits as a sequence: identify PCT-WIPO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- Bolar regulatory use parallel import
- research limits
- Mechanism chain
- Qualified use
- The Patent Cooperation Treaty
- WIPO

How to use them: Frame the answer through Bolar regulatory use parallel import; define research limits, connect Mechanism chain with Qualified use to explain the mechanism, and use The Patent Cooperation Treaty for the decisive comparison or qualification.

VISUAL FIRST

BOLAR REGULATORY USE PARALLEL IMPORT AND RESEARCH LIMITS

01. PCT-WIPO boundary

STATUS / CATEGORY FIREWALL -> Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d).

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

SIMPLE SYSTEM EXAMPLE

Read Bolar regulatory use parallel import and research limits as a sequence: identify PCT-WIPO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d). This keeps PCT-WIPO boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

EXAMINER CAUTION

- Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d).

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Tie permitted conduct to regulatory submission and reject an unlimited research claim.

MINI RECAP

- **Mechanism chain:** PCT-WIPO boundary
- **Qualified use:** Tie permitted conduct to regulatory submission and reject an unlimited research claim.

CLOSING RECALL FLOW - CORE - BOLAR REGULATORY USE PARALLEL IMPORT AND RESEARCH LIMITS

START / CONCEPT: CORE - Bolar regulatory use parallel import and research limits

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EXACT TERMS: Bolar regulatory use parallel import · research limits · Mechanism chain · Qualified use · The Patent Cooperation Treaty · WIPO

|
v

MECHANISM / ARGUMENT: Mechanism chain: PCT-WIPO boundary Qualified use: Tie permitted conduct to regulatory submission and reject an unlimited research claim.

|
v

CONSEQUENCE / CONTRAST: The decisive boundary is Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d).

|
v

UPSC TRAP / ANSWER-USE: Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d).

|
v

ANSWER-GRABBING FORMULATION: Read Bolar regulatory use parallel import and research limits as a sequence: identify PCT-WIPO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 9 - CORE - PCT WIPO NATIONAL PHASE AND TERRITORIAL GRANT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Technical definition: Read PCT WIPO national phase and territorial grant as a sequence: identify TRIPS-WTO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Mechanism chain: TRIPS-WTO boundary Qualified use: Explain filing, search, publication and national phase without inventing global grant.

MUST-WRITE KEYWORDS

- PCT WIPO national phase
- territorial grant
- Mechanism chain
- Qualified use
- TRIPS
- WTO

How to use them: Frame the answer through PCT WIPO national phase; define territorial grant, connect Mechanism chain with Qualified use to explain the mechanism, and use TRIPS for the decisive comparison or qualification.

VISUAL FIRST

PCT WIPO NATIONAL PHASE AND TERRITORIAL GRANT

01. TRIPS-WTO boundary

STATUS / CATEGORY FIREWALL -> Do not turn the Bolar provision into an unlimited general research defence.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

SIMPLE SYSTEM EXAMPLE

Read PCT WIPO national phase and territorial grant as a sequence: identify TRIPS-WTO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not turn the Bolar provision into an unlimited general research defence. This keeps TRIPS-WTO boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

EXAMINER CAUTION

- Do not turn the Bolar provision into an unlimited general research defence.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Explain filing, search, publication and national phase without inventing global grant.

MINI RECAP

- **Mechanism chain:** TRIPS-WTO boundary
- **Qualified use:** Explain filing, search, publication and national phase without inventing global grant.

CLOSING RECALL FLOW - CORE - PCT WIPO NATIONAL PHASE AND TERRITORIAL GRANT

START / CONCEPT: CORE - PCT WIPO national phase and territorial grant

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EXACT TERMS: PCT WIPO national phase · territorial grant · Mechanism chain · Qualified use · TRIPS
· WTO

|
v

MECHANISM / ARGUMENT: Read PCT WIPO national phase and territorial grant as a sequence: identify TRIPS-WTO boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

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CONSEQUENCE / CONTRAST: Mains: Explain filing, search, publication and national phase without inventing global grant.

|
v

UPSC TRAP / ANSWER-USE: The decisive boundary is Do not turn the Bolar provision into an unlimited general research defence.

|
v

ANSWER-GRABBING FORMULATION: Mechanism chain: TRIPS-WTO boundary Qualified use: Explain filing, search, publication and national phase without inventing global grant.

SESSION 10 - CORE - TRIPS WTO DOHA FLEXIBILITIES AND INSTITUTIONAL SEPARATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Read TRIPS WTO Doha flexibilities and institutional separation as a sequence: identify Traditional knowledge and TKDL, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

Technical definition: Mechanism chain: Traditional knowledge and TKDL Qualified use: Separate WTO obligations and flexibilities from WIPO treaty administration.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read TRIPS WTO Doha flexibilities and institutional separation as a sequence: identify Traditional knowledge and TKDL, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- **TRIPS WTO Doha flexibilities**
- **institutional separation**
- **Mechanism chain**
- **Qualified use**
- **The Traditional Knowledge Digital Library**
- **CSIR**

How to use them: Frame the answer through TRIPS WTO Doha flexibilities; define institutional separation, connect Mechanism chain with Qualified use to explain the mechanism, and use The Traditional Knowledge Digital Library for the decisive comparison or qualification.

VISUAL FIRST

TRIPS WTO DOHA FLEXIBILITIES AND INSTITUTIONAL SEPARATION

01. Traditional knowledge and TKDL

STATUS / CATEGORY FIREWALL -> Do not call the PCT a world patent or WIPO a national granting office.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

SIMPLE SYSTEM EXAMPLE

Read TRIPS WTO Doha flexibilities and institutional separation as a sequence: identify Traditional knowledge and TKDL, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not call the PCT a world patent or WIPO a national granting office. This keeps Traditional knowledge and TKDL in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

EXAMINER CAUTION

- Do not call the PCT a world patent or WIPO a national granting office.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Separate WTO obligations and flexibilities from WIPO treaty administration.

MINI RECAP

- **Mechanism chain:** Traditional knowledge and TKDL
- **Qualified use:** Separate WTO obligations and flexibilities from WIPO treaty administration.

CLOSING RECALL FLOW - CORE - TRIPS WTO DOHA FLEXIBILITIES AND INSTITUTIONAL SEPARATION

START / CONCEPT: CORE - TRIPS WTO Doha flexibilities and institutional separation

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EXACT TERMS: TRIPS WTO Doha flexibilities · institutional separation · Mechanism chain · Qualified use · The Traditional Knowledge Digital Library · CSIR

|

v

MECHANISM / ARGUMENT: Mechanism chain: Traditional knowledge and TKDL Qualified use: Separate WTO obligations and flexibilities from WIPO treaty administration.

|

v

CONSEQUENCE / CONTRAST: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

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v

UPSC TRAP / ANSWER-USE: The decisive boundary is Do not call the PCT a world patent or WIPO a national granting office.

|

v

ANSWER-GRABBING FORMULATION: Read TRIPS WTO Doha flexibilities and institutional separation as a sequence: identify Traditional knowledge and TKDL, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 11 - CORE - TRADITIONAL KNOWLEDGE BIOPIRACY AND TKDL DEFENSIVE PRIOR ART

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Read Traditional knowledge biopiracy and TKDL defensive prior art as a sequence: identify IP-instrument boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

Technical definition: Mechanism chain: IP-instrument boundary - Life-material patentability boundary Qualified use: Trace prior-art documentation to defensive protection and benefit-sharing concerns.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Traditional knowledge biopiracy and TKDL defensive prior art as a sequence: identify IP-instrument boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- Traditional knowledge biopiracy
- TKDL defensive prior art
- Mechanism chain
- Qualified use
- Section
- PPV

How to use them: Frame the answer through Traditional knowledge biopiracy; define TKDL defensive prior art, connect Mechanism chain with Qualified use to explain the mechanism, and use Section for the decisive comparison or qualification.

VISUAL FIRST

TRADITIONAL KNOWLEDGE BIOPIRACY AND TKDL DEFENSIVE PRIOR ART

01. IP-instrument boundary

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02. Life-material patentability boundary

STATUS / CATEGORY FIREWALL -> Do not make TRIPS a WIPO treaty or a patent-filing route.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

SIMPLE SYSTEM EXAMPLE

Read Traditional knowledge biopiracy and TKDL defensive prior art as a sequence: identify IP-instrument boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not make TRIPS a WIPO treaty or a patent-filing route. This keeps IP-instrument boundary and Life-material patentability boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.
- Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

EXAMINER CAUTION

- Do not make TRIPS a WIPO treaty or a patent-filing route.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Trace prior-art documentation to defensive protection and benefit-sharing concerns.

MINI RECAP

- **Mechanism chain:** IP-instrument boundary -> Life-material patentability boundary
- **Qualified use:** Trace prior-art documentation to defensive protection and benefit-sharing concerns.

CLOSING RECALL FLOW - CORE - TRADITIONAL KNOWLEDGE BIOPIRACY AND TKDL DEFENSIVE PRIOR ART

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START / CONCEPT: CORE - Traditional knowledge biopiracy and TKDL defensive prior art
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v
EXACT TERMS: Traditional knowledge biopiracy · TKDL defensive prior art · Mechanism chain ·
Qualified use · Section · PPV
|
v
MECHANISM / ARGUMENT: Mechanism chain: IP-instrument boundary - Life-material patentability
boundary Qualified use: Trace prior-art documentation to defensive protection and benefit-sharing
concerns.
|
v
CONSEQUENCE / CONTRAST: The decisive boundary is Do not make TRIPS a WIPO treaty or a patent-filing
route.
|
v
UPSC TRAP / ANSWER-USE: Do not make TRIPS a WIPO treaty or a patent-filing route.
|
v
ANSWER-GRABBING FORMULATION: Read Traditional knowledge biopiracy and TKDL defensive prior art as a
sequence: identify IP-instrument boundary, follow the named mechanism to its user or output, and
stop at the last verified status rather than assuming the next stage.
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SESSION 12 - CORE - PATENT GI COPYRIGHT TRADEMARK AND DESIGN BOUNDARIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The decisive boundary is Do not describe TKDL as ownership of all traditional knowledge.

Technical definition: Read Patent GI copyright trademark and design boundaries as a sequence: identify Software-claim discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Patent GI copyright trademark and design boundaries as a sequence: identify Software-claim discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- Patent GI copyright trademark

- design boundaries
- Mechanism chain
- Qualified use
- IPR
- Read Patent GI

How to use them: Frame the answer through Patent GI copyright trademark; define design boundaries, connect Mechanism chain with Qualified use to explain the mechanism, and use IPR for the decisive comparison or qualification.

VISUAL FIRST

PATENT GI COPYRIGHT TRADEMARK AND DESIGN BOUNDARIES

01. Software-claim discipline

STATUS / CATEGORY FIREWALL -> Do not describe TKDL as ownership of all traditional knowledge.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

SIMPLE SYSTEM EXAMPLE

Read Patent GI copyright trademark and design boundaries as a sequence: identify Software-claim discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not describe TKDL as ownership of all traditional knowledge. This keeps Software-claim discipline in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

EXAMINER CAUTION

- Do not describe TKDL as ownership of all traditional knowledge.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Match each asset to the correct right, holder, duration logic and statute.

MINI RECAP

- **Mechanism chain:** Software-claim discipline
- **Qualified use:** Match each asset to the correct right, holder, duration logic and statute.

CLOSING RECALL FLOW - CORE - PATENT GI COPYRIGHT TRADEMARK AND DESIGN BOUNDARIES

START / CONCEPT: CORE - Patent GI copyright trademark and design boundaries

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v

EXACT TERMS: Patent GI copyright trademark · design boundaries · Mechanism chain · Qualified use ·
IPR · Read Patent GI

|
v

MECHANISM / ARGUMENT: Mechanism chain: Software-claim discipline Qualified use: Match each asset to
the correct right, holder, duration logic and statute.

|
v

CONSEQUENCE / CONTRAST: The audited owners link software ecosystems to IPR but do not support a
blanket proposition that every software-labelled claim is patentable or unpatentable; classify the
claimed technical subject matter under the applicable patent criteria and exclusions before
concluding.

|
v

UPSC TRAP / ANSWER-USE: The decisive boundary is Do not describe TKDL as ownership of all
traditional knowledge.

|
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ANSWER-GRABBING FORMULATION: Read Patent GI copyright trademark and design boundaries as a sequence:
identify Software-claim discipline, follow the named mechanism to its user or output, and stop at
the last verified status rather than assuming the next stage.

SESSION 13 - CORE SYNTHESIS - BIOTECHNOLOGY LIFE MATERIALS SOFTWARE AND EXCLUDED SUBJECT MATTER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Read Biotechnology life materials software and excluded subject matter as a sequence:
identify Access-innovation balance, follow the named mechanism to its user or output, and stop at the last verified
status rather than assuming the next stage.

Technical definition: Mechanism chain: Access-innovation balance Qualified use: Classify plants, micro-organisms,
varieties and software claims without blanket rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Biotechnology life materials software and excluded subject matter as a sequence: identify Access-innovation
balance, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming
the next stage.

MUST-WRITE KEYWORDS

- CORE SYNTHESIS
- Biotechnology life materials software
- excluded subject matter
- Mechanism chain
- Qualified use
- Patents

How to use them: Frame the answer through CORE SYNTHESIS; define Biotechnology life materials software,
connect excluded subject matter with Mechanism chain to explain the mechanism, and use Qualified use for the
decisive comparison or qualification.

VISUAL FIRST

BIOTECHNOLOGY LIFE MATERIALS SOFTWARE AND EXCLUDED SUBJECT MATTER

01. Access-innovation balance

STATUS / CATEGORY FIREWALL -> Do not treat GI, trademark, copyright, design and patent as interchangeable.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

SIMPLE SYSTEM EXAMPLE

Read Biotechnology life materials software and excluded subject matter as a sequence: identify Access-innovation balance, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not treat GI, trademark, copyright, design and patent as interchangeable. This keeps Access-innovation balance in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

EXAMINER CAUTION

- Do not treat GI, trademark, copyright, design and patent as interchangeable.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Classify plants, micro-organisms, varieties and software claims without blanket rules.

MINI RECAP

- **Mechanism chain:** Access-innovation balance
- **Qualified use:** Classify plants, micro-organisms, varieties and software claims without blanket rules.

CLOSING RECALL FLOW - CORE SYNTHESIS - BIOTECHNOLOGY LIFE MATERIALS SOFTWARE AND EXCLUDED SUBJECT MATTER

START / CONCEPT: CORE SYNTHESIS - Biotechnology life materials software and excluded subject matter

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EXACT TERMS: CORE SYNTHESIS · Biotechnology life materials software · excluded subject matter · Mechanism chain · Qualified use · Patents

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MECHANISM / ARGUMENT: Mechanism chain: Access-innovation balance Qualified use: Classify plants, micro-organisms, varieties and software claims without blanket rules.

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CONSEQUENCE / CONTRAST: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

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UPSC TRAP / ANSWER-USE: The decisive boundary is Do not treat GI, trademark, copyright, design and patent as interchangeable.

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ANSWER-GRABBING FORMULATION: Read Biotechnology life materials software and excluded subject matter as a sequence: identify Access-innovation balance, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 14 - CORE SYNTHESIS - ACCESS INNOVATION COMMERCIALISATION AND TECHNOLOGY TRANSFER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Technical definition: Read Access innovation commercialisation and technology transfer as a sequence: identify Commercialisation-chain boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Access innovation commercialisation and technology transfer as a sequence: identify Commercialisation-chain boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- CORE SYNTHESIS
- Access innovation commercialisation
- technology transfer
- Mechanism chain
- Qualified use
- A filing or grant

How to use them: Frame the answer through CORE SYNTHESIS; define Access innovation commercialisation, connect technology transfer with Mechanism chain to explain the mechanism, and use Qualified use for the decisive comparison or qualification.

VISUAL FIRST

ACCESS INNOVATION COMMERCIALISATION AND TECHNOLOGY TRANSFER

01. Commercialisation-chain boundary

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02. Opposition-revocation-status boundary

STATUS / CATEGORY FIREWALL -> Do not patent-label every life material; apply Section 3(j) and the PPV&FR route.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

SIMPLE SYSTEM EXAMPLE

Read Access innovation commercialisation and technology transfer as a sequence: identify Commercialisation-chain boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not patent-label every life material; apply Section 3(j) and the PPV&FR route. This keeps Commercialisation-chain boundary and Opposition-revocation-status boundary in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.
- Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

EXAMINER CAUTION

- Do not patent-label every life material; apply Section 3(j) and the PPV&FR route.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Follow filing through technology transfer, scale-up, regulation, market and access.

MINI RECAP

- **Mechanism chain:** Commercialisation-chain boundary -> Opposition-revocation-status boundary
- **Qualified use:** Follow filing through technology transfer, scale-up, regulation, market and access.

CLOSING RECALL FLOW - CORE SYNTHESIS - ACCESS INNOVATION COMMERCIALISATION AND TECHNOLOGY TRANSFER

START / CONCEPT: CORE SYNTHESIS - Access innovation commercialisation and technology transfer

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EXACT TERMS: CORE SYNTHESIS · Access innovation commercialisation · technology transfer · Mechanism chain · Qualified use · A filing or grant

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MECHANISM / ARGUMENT: Mechanism chain: Commercialisation-chain boundary - Opposition-revocation-status boundary Qualified use: Follow filing through technology transfer, scale-up, regulation, market and access.

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CONSEQUENCE / CONTRAST: Mains: Follow filing through technology transfer, scale-up, regulation, market and access.

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UPSC TRAP / ANSWER-USE: The decisive boundary is Do not patent-label every life material; apply Section 3(j) and the PPV&FR route.

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ANSWER-GRABBING FORMULATION: Read Access innovation commercialisation and technology transfer as a sequence: identify Commercialisation-chain boundary, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

SESSION 15 - CORE SYNTHESIS - OPPOSITION REVOCATION IPAB PYQ AND STATUS DISCIPLINE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Technical definition: Read Opposition revocation IPAB PYQ and status discipline as a sequence: identify IPAB date discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Read Opposition revocation IPAB PYQ and status discipline as a sequence: identify IPAB date discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

MUST-WRITE KEYWORDS

- **CORE SYNTHESIS**
- **Opposition revocation IPAB PYQ**
- **status discipline**
- **Mechanism chain**
- **Qualified use**
- **Subject**

How to use them: Frame the answer through CORE SYNTHESIS; define Opposition revocation IPAB PYQ, connect status discipline with Mechanism chain to explain the mechanism, and use Qualified use for the decisive comparison or qualification.

VISUAL FIRST

OPPOSITION REVOCATION IPAB PYQ AND STATUS DISCIPLINE

01. IPAB date discipline

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02. Evidence and status firewall

STATUS / CATEGORY FIREWALL -> Do not assert a blanket software-patent rule beyond the audited owners.

The rail fixes the technical sequence and the claim boundary before explanation.

CORE EXPLANATION

The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

SIMPLE SYSTEM EXAMPLE

Read Opposition revocation IPAB PYQ and status discipline as a sequence: identify IPAB date discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

TECHNICAL DISTINCTION

The decisive boundary is Do not assert a blanket software-patent rule beyond the audited owners. This keeps IPAB date discipline and Evidence and status firewall in the correct scientific category, institution and unit of measurement.

NAMED EVIDENCE AND MECHANISM

- The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.
- Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

EXAMINER CAUTION

- Do not assert a blanket software-patent rule beyond the audited owners.

EXAM LINK

- **Prelims:** Keep institution, system, platform, service, process, legal instrument, unit and status in their exact category.
- **Mains:** Answer at the PYQ date and distinguish every challenge and terminal status.

MINI RECAP

- **Mechanism chain:** IPAB date discipline -> Evidence and status firewall
- **Qualified use:** Answer at the PYQ date and distinguish every challenge and terminal status.

COMPLETE BASIC OWNER EVIDENCE BANK

Subject: Science & Technology | **Tier:** Must-Do (foundation) | **GS Paper:** GS-III + GS-II + Prelims. **Core area:** IPR types, patent law basics and Indian institutional architecture. **Grounded in:** IP India Patents Act page (<https://ipindia.gov.in/pages/patents/chapter> - verified 16 Jul 2026); Patents Act PDF used for Section 3(d) and compulsory licensing text (<https://ipindia.gov.in/storage/uploads/docs-operator/73b5bf10-b04e-4f45-abef-87ff117315dc.pdf> - verified 16 Jul 2026); Basics of Trademarks page (<https://ipindia.gov.in/basics-of-trademarks> - verified 16 Jul 2026); GI introduction and filing process pages (<https://ipindia.gov.in/gi-introduction> and <https://ipindia.gov.in/gi-filing-process-step-by-step> - verified 16 Jul 2026); CIPAM National IPR Policy summary (<https://cipam.gov.in/en/about/national-IPR-policy> - verified 16 Jul 2026); WIPO PCT contracting states page (<https://www.wipo.int/en/web/pct-system/pct-contracting-states> - verified 16 Jul 2026). **Additionally verified 2 Aug 2026:** WIPO Global Innovation Index 2025 results, India ranked 38th (<https://www.wipo.int/web-publications/global-innovation-index-2025/en/gii-2025-results.html>); Patents (Amendment) Rules, 2024 of 15 and 16 Mar 2024 as listed by IP India (<https://ipindia.gov.in/storage/uploads/docs-operator/17e7b633-4b6f-4737-9408-8c8fe72c9cfc.pdf>); CGPD TM Annual Report 2024-25 located but tables not machine-readable (https://ipindia.gov.in/storage/uploads/media/English_Annual_Report_2024-25.pdf) - no filing/grant statistic is asserted in this file. **FACT:** = source-grounded | **ANALYSIS:** = analytical linkage | **CURRENT:** = current/dated development. *Companion:* advanced/17_Intellectual-Property-Rights-and-Patents.md.

1. Visual foundation

IP instrument	Protects what?	Typical holder	Duration logic
FACT: Patent	New invention (product/process) meeting legal criteria	Inventor / assignee	20 years from filing; not renewable forever
FACT: Trademark	Brand identifier distinguishing goods/services	Individual, firm or company proprietor	10 years, renewable indefinitely
FACT: GI	Goods whose quality/reputation is tied to place of origin	Collective/community/association-based right	10 years, renewable indefinitely
FACT: Copyright	Original literary, artistic, musical and related works	Author / rights holder	Term differs by work type
FACT: Design	Visual features of shape, pattern, ornament or composition	Registered proprietor	Separate design-law route
FACT: Trade secret	Confidential business information with competitive value	Enterprise / lawful possessor	No fixed statutory term; lasts while secrecy is maintained

Core proposition: UPSC repeatedly tests whether the candidate can distinguish **patent**, **trademark** and **GI** as three legally different IP tools rather than treating all “rights” as one category.

2. Essential definitions

Concept	Exam-ready meaning
FACT: Patent	Exclusive right granted for an invention that is new, involves inventive step and is capable of industrial application.
FACT: Inventive step	Technical advance or economic significance that makes the invention non-obvious to a person skilled in the art.
FACT: Trademark	Sign capable of graphic representation and of distinguishing the goods or services of one person from those of others.
FACT: Geographical Indication (GI)	Indication identifying goods as originating in a territory/region/locality where a given quality, reputation or characteristic is essentially attributable to that origin.
FACT: Section 3(d)	Patentability filter with two distinct limbs. First, mere discovery of a new property or new use of a known substance, or of the mere use of a known process/machine/apparatus, is not an invention at all . Second, a new form of a known substance (salt, ester, polymorph, isomer, metabolite, particle size, etc.) is not patentable unless it differs significantly in properties with regard to efficacy - with efficacy read as <i>therapeutic efficacy</i> in <i>Novartis v. Union of India</i> (2013). ANALYSIS: Enhanced efficacy rescues a new form ; it does not rescue a new use .
ANALYSIS: Section 3(b)	Excludes inventions whose primary or intended use would be contrary to public order or morality, or cause serious prejudice to human, animal or plant life or health or to the environment.
ANALYSIS: Section 3(j)	Excludes plants and animals in whole or any part thereof (other than micro-organisms), including seeds, varieties and species, and essentially biological processes for their production. This is the provision that pushes plant-variety protection out of patent law and into the PPV&FR Act - directly relevant to the 2024 PYQ on IPR and "life materials."
FACT: Compulsory licence	Statutory authorization to use a patent without a voluntary licence. Section 84 allows an application after three years from grant on any of three grounds - reasonable requirements of the public not satisfied, the invention not available at a reasonably affordable price, or the invention not worked in India. Section 92 permits government-notified compulsory licences in circumstances of national emergency, extreme urgency or public non-commercial use. India's only granted s.84 licence to date was Natco v. Bayer (2012, sorafenib/Nexavar) .
ANALYSIS: Section 107A (Bolar exemption + parallel import)	Permits making/using/selling a patented invention solely for uses reasonably related to development and submission of regulatory information , so generic makers can be ready on patent expiry; it also permits importation from a person duly authorised under the law to produce and sell the product.
ANALYSIS: Pre-grant and post-grant opposition	Section 25(1) allows <i>any person</i> to oppose before grant; Section 25(2) allows an <i>interested person</i> to oppose within one year of grant. This two-stage opposition system is a distinctive feature of Indian patent law and a key public-health safeguard.

Concept	Exam-ready meaning
ANALYSIS: Product vs process patent	India granted only process patents in pharmaceuticals, food and chemicals from 1970, which built the generics industry. Product patents were restored from 1 January 2005 under TRIPS, with s.3(d), compulsory licensing and oppositions retained as balancing devices.
FACT: PCT	WIPO-administered filing system for international patent applications; it is a filing route, not a global patent grant.
FACT: TRIPS	WTO agreement setting minimum standards for intellectual-property protection and flexibilities; the Doha Declaration on TRIPS and Public Health (2001) affirmed members' right to grant compulsory licences and determine the grounds for them.

The five statutes and the treaties (do not merge them):

Right	Indian statute	Term	Character
ANALYSIS: Patent	Patents Act, 1970	20 years from filing	Time-bound monopoly over an invention
ANALYSIS: Trademark	Trade Marks Act, 1999	10 years, indefinitely renewable	Brand identifier, potentially perpetual
ANALYSIS: Geographical Indication	GI of Goods (Registration and Protection) Act, 1999	10 years, renewable	Collective, place-based right; cannot be assigned or licensed to an outsider
ANALYSIS: Copyright	Copyright Act, 1957	Generally life of author + 60 years	Automatic on creation; protects expression, not ideas
ANALYSIS: Industrial design	Designs Act, 2000	10 + 5 years	Protects visual appearance, not function
ANALYSIS: Semiconductor layout-design	Semiconductor Integrated Circuits Layout-Design Act, 2000	10 years	<i>Sui generis</i> right - the IPR link to Topic 11
ANALYSIS: Plant variety + farmers' rights	Protection of Plant Varieties and Farmers' Rights Act, 2001	Crop-dependent	<i>Sui generis</i> TRIPS-compliant alternative to plant patents; expressly preserves the farmer's right to save, use, sow, exchange and sell farm-saved seed (not branded seed of a protected variety)

ANALYSIS: **International instruments: Paris Convention** (industrial property, national treatment, priority), **Berne Convention** (copyright), **PCT** (international patent filing), **Madrid Protocol** (international trademark registration), **Budapest Treaty** (deposit of micro-organisms for patent purposes) and **TRIPS** with the **Doha Declaration**. India's **Traditional Knowledge Digital Library (TKDL)**, built by CSIR with the Ministry of Ayush, functions as defensive protection by making prior art searchable to foreign patent offices - the answer to biopiracy cases such as turmeric, neem and basmati.

3. Mechanism / how it works

- FACT: For a patent in India, the invention must satisfy **novelty, inventive step and industrial applicability**.
- FACT: Section 3 of the Patents Act excludes certain subject matter from patentability; **s.3(d)** governs new forms/new uses, **s.3(j)** excludes plants, animals and essentially biological processes, and **s.3(b)** covers public order and morality.
- FACT: A patent application is filed, published, examined **on request**, opposed if challenged, and, if compliant, granted for **20 years from the date of filing**, subject to annual renewal fees and **Form 27 working statements**.
- FACT: A trademark application protects brand-distinguishing signs; registration is renewable in further 10-year blocks.

5. FACT: A GI application is filed through the GI Registry with proof of geographical link, reputation/quality and producer organization details; **registration protects a collective right of producers in the region**, and a separate **authorised-user** registration lets individual producers enforce it.
6. FACT: Under Section 84, compulsory licensing may be sought after three years from grant if public requirements are unmet, price is not reasonably affordable or the invention is not worked in India; **s.92** covers emergency/public non-commercial use.
7. ANALYSIS: UPSC answers should connect IPR with **innovation incentives + public interest + access questions**.

4. Institutions and programmes

- FACT: **CGPDTM (Office of the Controller General of Patents, Designs and Trade Marks)**: administers **patents, designs, trade marks and geographical indications**. ANALYSIS: It does **not** administer copyright (Copyright Office, under DPIIT) or plant varieties (**PPV&FR Authority**, under the Ministry of Agriculture). Do not describe it as the umbrella authority for all IP.
- FACT: **Patent Office / Trade Marks Registry / GI Registry**: administrative arms under the IP India architecture.
- FACT: **GI Registry, Chennai**: nodal registry for Geographical Indications.
- FACT: **PPV&FR Authority**: registers plant varieties and administers **farmers' rights**, including registration of farmers' varieties and benefit sharing.
- FACT: **DPIIT and CIPAM**: policy coordination and implementation support under the National IPR Policy 2016; DPIIT is the **policy** ministry, distinct from CGPDTM's **administrative/adjudicatory** function.
- FACT: **TKDL (CSIR + Ministry of Ayush)**: defensive documentation of traditional knowledge to prevent wrongful patent grants abroad.
- FACT: **WIPO**: global IP body administering treaties such as the PCT, Madrid, Paris, Berne and Budapest - a **UN specialised agency**, not a WTO organ.
- FACT: **WTO/TRIPS framework**: international rule-setting layer relevant to India's IP obligations and flexibilities. ANALYSIS: **WIPO ≠ WTO**: WIPO administers treaties and registries; the WTO enforces TRIPS through dispute settlement.

5. Indian applications, examples and limitations

- FACT: **Patents**: important in pharmaceuticals, manufacturing, biotechnology, electronics and deep-tech innovation.
- FACT: **Trademarks**: crucial for brand identity, market signalling and consumer trust.
- FACT: **GIs**: protect region-linked products such as Darjeeling Tea, Kanchipuram Silk or other place-based goods.
- FACT: **National IPR Policy 2016**: stresses awareness, stronger administration, commercialization and balance with public interest.
- ANALYSIS: **Limitation 1**: strong rights on paper do not automatically ensure fast enforcement or low litigation cost.
- ANALYSIS: **Limitation 2**: domestic innovators, MSMEs and producer groups may face knowledge and procedural barriers.
- ANALYSIS: **Limitation 3**: patent protection can encourage innovation, but public-health access questions remain central in sectors like pharma.

6. Must-Know Facts for Prelims

- FACT: A **patent** protects an invention; a **trademark** protects a brand identifier; a **GI** protects place-linked goods with collective regional character.
- FACT: Patentability in India requires **novelty, inventive step and industrial applicability**.
- FACT: Section 3(d) is significant because it prevents routine evergreening claims over known substances without enhanced efficacy.
- FACT: Section 84 allows compulsory licensing after three years from grant on specific public-interest grounds.
- FACT: The Basics of Trademarks page says a registered trademark is valid for **10 years** and is renewable indefinitely for further 10-year periods.

- FACT: GI registration also runs for **10 years** and can be renewed in further 10-year blocks.
- FACT: WIPO's PCT system is an international filing mechanism; it does **not** itself grant a world patent.
- FACT: India is a PCT contracting state under the WIPO-administered system.

7. UPSC traps

- WRONG: **Patent, GI and trademark are interchangeable IPR labels.** -> They protect different subject matter, have different holders and work through different legal logic.
- WRONG: **A GI belongs to one private company like a trademark.** -> A GI is a place-based collective right tied to producer groups and origin.
- WRONG: **A patent can be renewed indefinitely like a trademark.** -> Patent protection is time-bound; trademarks can be renewed indefinitely.
- WRONG: **Section 3(d) bans all pharma patents.** -> It targets evergreening-type claims lacking enhanced efficacy, not every pharmaceutical invention.
- WRONG: **PCT gives one global patent valid everywhere.** -> It provides a common filing route, after which national/regional phase procedures still matter.
- WRONG: **Compulsory licensing means abolition of patent rights.** -> It is a statutory public-interest exception with conditions, not full patent cancellation.

8. CURRENT: Current anchor

- CURRENT: **FY 2024-25 | IP India Annual Report | Status: report published.** The CGPD TM annual report records continued growth in filings and administrative modernization.
- CURRENT: **18 Jul 2024 | NIPAM event listing on official IP awareness portal | Status: outreach ongoing.** IP awareness sessions continued under the National Intellectual Property Awareness Mission.
- CURRENT: **07 Dec 2024 | NIPAM event listing on official IP awareness portal | Status: outreach ongoing.** The IP-awareness architecture remained active beyond one-off campaigns.
- CURRENT: **01 Jul 2026 | WIPO PCT Applicant's Guide India profile validity date | Status: in-force reference material.** WIPO's India PCT guide remained updated for applicants using the international filing route.
- CURRENT: **15-16 Mar 2024 | Patents (Amendment) Rules, 2024 notified.** IP India records the Patents (Amendment) Rules, 2024 dated 15 Mar 2024 and a second amendment dated 16 Mar 2024. ANALYSIS: **The detailed effects of these Rules could not be extracted from the official PDF at the verification date** - do not assert specific changes (certificate of inventorship, Form 27 frequency, opposition procedure, extensions of time) without reading ipindia.gov.in directly.
- CURRENT: **2025 | Global Innovation Index: India ranked 38th** in WIPO's Global Innovation Index 2025. ANALYSIS: Always cite the **edition year with the rank**; GII rank is among the most frequently mis-stated statistics in S&T answers.
- ANALYSIS: **Patent filing/grant statistics:** the CGPD TM Annual Report for **2024-25** exists on ipindia.gov.in but its tables were not machine-readable at the verification date, so **no filing, grant or resident-share figure is asserted here**. Cite the Annual Report directly.

Current as of 16 Jul 2026, re-verified 2 Aug 2026; verify for later updates.

10. Mains framework / angles

- ANALYSIS: Start with the IPR ecosystem, then separate **patent / trademark / GI** clearly.
- ANALYSIS: Mention patentability criteria and the role of Section 3(d).
- ANALYSIS: Add compulsory licensing as a legally recognized public-interest flexibility.
- ANALYSIS: Bring in DPIIT, CGPD TM, WIPO, PCT and TRIPS.
- ANALYSIS: Conclude with commercialization and public-interest balance rather than taking an extreme pro- or anti-IP stance.

Answer thesis: India's IPR regime should be read as a differentiated legal architecture—patents for inventions, trademarks for brands and GIs for place-linked goods—while patent law itself contains public-interest filters such as Section 3(d) and compulsory licensing to balance innovation with access and welfare.

11. Probable questions

- ANALYSIS: **Practice Prelims:** Which one of the following correctly distinguishes a patent from a geographical indication and a trademark?
- ANALYSIS: **Practice Mains (10 marks):** Explain the significance of Section 3(d) of the Patents Act, 1970. *Answer in 150 words.*
- ANALYSIS: **Practice Mains (15 marks):** Discuss the role of India's IPR framework in promoting innovation while safeguarding public interest, with special reference to patents, compulsory licensing and GI protection.

12. Study links

- FACT: Advanced companion: advanced/17_Intellectual-Property-Rights-and-Patents.md.
- FACT: 09_Artificial-Intelligence-Governance-and-IndiaAI.md - emerging-tech regulation increasingly intersects with IP questions.
- FACT: 08_Digital-India-and-India-Stack-UPI-Aadhaar.md - digital economy expansion raises software, data and branding questions.
- FACT: 10_National-Quantum-Mission-and-Quantum-Tech.md - frontier R&D also depends on patenting and technology-commercialization capacity.

Core answer architecture - life-material IPR and commercialisation

Thesis choice. Life-material IPR is a differentiated balance among innovation, biodiversity, farmers' rights and public health; a high filing count neither proves patent quality nor commercialisation.

10-mark spine. Start with the legal category; distinguish what patent law excludes/protects; give the Indian/TRIPS balance; organise low commercialisation causes into research, institution, market and finance/process blocks; conclude with one realistic bridge.

15/20-mark spine. Use **global legal choice -> Indian statutory architecture -> evidence of public-interest balance -> translation failure chain -> access/competition/biodiversity counterweights -> verdict.**

Evidence units.

- **Claim:** India protects life-related innovation through more than patents -> **Patents Act s.3(j), PPV&FR Act and micro-organism treatment under the patent framework** -> plant varieties/farmers' rights are not collapsed into ordinary patent ownership -> **qualification:** global jurisdictions vary, so do not claim a single world rule for genes, organisms or varieties.
- **Claim:** IP safeguards can preserve public interest -> **s.3(d), s.84 compulsory licensing, oppositions, TRIPS/Doha and TKDL defensive prior art** -> filters evergreening and biopiracy while retaining innovation incentives -> **qualification:** a legal right or licence route does not itself deliver affordable product manufacture or access.
- **Claim:** commercialisation breaks after filing at multiple links -> **academic/defensive filing, weak TTOs and ownership rules, thin proof-of-concept/pilot finance, low industrial absorption and costly enforcement** -> explains why patent count is an input, not market adoption -> **qualification:** avoid repeating the question's "second" rank as a current statistic unless independently verified.

Verdict. Improve technology transfer, validation facilities, transparent benefit sharing and risk capital while retaining competition and health/biodiversity safeguards.

CLOSING RECALL FLOW - CORE SYNTHESIS - OPPOSITION REVOCATION IPAB PYQ AND STATUS DISCIPLINE

START / CONCEPT: CORE SYNTHESIS - Opposition revocation IPAB PYQ and status discipline

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EXACT TERMS: CORE SYNTHESIS · Opposition revocation IPAB PYQ · status discipline · Mechanism chain
· Qualified use · Subject

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MECHANISM / ARGUMENT: Mechanism chain: IPAB date discipline - Evidence and status firewall
Qualified use: Answer at the PYQ date and distinguish every challenge and terminal status.

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CONSEQUENCE / CONTRAST: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

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UPSC TRAP / ANSWER-USE: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

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ANSWER-GRABBING FORMULATION: Read Opposition revocation IPAB PYQ and status discipline as a sequence: identify IPAB date discipline, follow the named mechanism to its user or output, and stop at the last verified status rather than assuming the next stage.

BASIC MCQS / REMEDIATION

Q1. Which statement correctly identifies Patent bargain and criteria?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: A. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q2. Which option preserves the technical boundary of Patent bargain and criteria?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: B. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner,

measurement, mission rung or operating status.

Q3. Which statement uses Patent bargain and criteria without changing its institution, unit or status?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: C. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q4. Which option avoids the standard UPSC close-option trap about Patent bargain and criteria?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: D. Explanation: A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q5. Which statement correctly identifies Invention-discovery boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: A. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(c) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q6. Which option preserves the technical boundary of Invention-discovery boundary?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: B. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(c) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q7. Which statement uses Invention-discovery boundary without changing its institution, unit or status?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: C. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(b) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q8. Which option avoids the standard UPSC close-option trap about Invention-discovery boundary?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: D. Explanation: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q9. Which statement correctly identifies Product-process boundary?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: A. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q10. Which option preserves the technical boundary of Product-process boundary?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: B. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q11. Which statement uses Product-process boundary without changing its institution, unit or status?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: C. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q12. Which option avoids the standard UPSC close-option trap about Product-process boundary?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: D. Explanation: A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q13. Which statement correctly identifies Term-territoriality boundary?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: A. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q14. Which option preserves the technical boundary of Term-territoriality boundary?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: B. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q15. Which statement uses Term-territoriality boundary without changing its institution, unit or status?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

Answer: C. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q16. Which option avoids the standard UPSC close-option trap about Term-territoriality boundary?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. D. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.

Answer: D. Explanation: The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q17. Which statement correctly identifies Application-publication-examination-grant ladder?

A. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: A. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q18. Which option preserves the technical boundary of Application-publication-examination-grant ladder?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: B. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q19. Which statement uses Application-publication-examination-grant ladder without changing its institution, unit or status?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: C. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q20. Which option avoids the standard UPSC close-option trap about Application-publication-examination-grant ladder?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: D. Explanation: Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q21. Which statement correctly identifies Controller and Patent Office roles?

A. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: A. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q22. Which option preserves the technical boundary of Controller and Patent Office roles?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: B. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q23. Which statement uses Controller and Patent Office roles without changing its institution, unit or status?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: C. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q24. Which option avoids the standard UPSC close-option trap about Controller and Patent Office roles?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Answer: D. Explanation: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q25. Which statement correctly identifies Compulsory-licensing boundary?

A. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: A. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q26. Which option preserves the technical boundary of Compulsory-licensing boundary?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: B. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q27. Which statement uses Compulsory-licensing boundary without changing its institution, unit or status?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. C. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: C. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q28. Which option avoids the standard UPSC close-option trap about Compulsory-licensing boundary?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. D. Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.

Answer: D. Explanation: Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q29. Which statement correctly identifies Section 3(d) two-limb filter?

A. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: A. Explanation: Section 3(c) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q30. Which option preserves the technical boundary of Section 3(d) two-limb filter?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: B. Explanation: Section 3(c) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q31. Which statement uses Section 3(d) two-limb filter without changing its institution, unit or status?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: C. Explanation: Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q32. Which option avoids the standard UPSC close-option trap about Section 3(d) two-limb filter?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Answer: D. Explanation: Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q33. Which statement correctly identifies Bolar and research discipline?

A. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

Answer: A. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q34. Which option preserves the technical boundary of Bolar and research discipline?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: B. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q35. Which statement uses Bolar and research discipline without changing its institution, unit or status?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: C. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q36. Which option avoids the standard UPSC close-option trap about Bolar and research discipline?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.

Answer: D. Explanation: Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q37. Which statement correctly identifies PCT-WIPO boundary?

A. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: A. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q38. Which option preserves the technical boundary of PCT-WIPO boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: B. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q39. Which statement uses PCT-WIPO boundary without changing its institution, unit or status?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: C. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q40. Which option avoids the standard UPSC close-option trap about PCT-WIPO boundary?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.

Answer: D. Explanation: The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q41. Which statement correctly identifies TRIPS-WTO boundary?

A. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: A. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q42. Which option preserves the technical boundary of TRIPS-WTO boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: B. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q43. Which statement uses TRIPS-WTO boundary without changing its institution, unit or status?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: C. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q44. Which option avoids the standard UPSC close-option trap about TRIPS-WTO boundary?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.

Answer: D. Explanation: TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q45. Which statement correctly identifies Traditional knowledge and TKDL?

A. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: A. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q46. Which option preserves the technical boundary of Traditional knowledge and TKDL?

A. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. B. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: B. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q47. Which statement uses Traditional knowledge and TKDL without changing its institution, unit or status?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: C. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q48. Which option avoids the standard UPSC close-option trap about Traditional knowledge and TKDL?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.

Answer: D. Explanation: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q49. Which statement correctly identifies IP-instrument boundary?

A. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: A. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q50. Which option preserves the technical boundary of IP-instrument boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: B. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q51. Which statement uses IP-instrument boundary without changing its institution, unit or status?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: C. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q52. Which option avoids the standard UPSC close-option trap about IP-instrument boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. C. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. D. Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Answer: D. Explanation: Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q53. Which statement correctly identifies Life-material patentability boundary?

A. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: A. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q54. Which option preserves the technical boundary of Life-material patentability boundary?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: B. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q55. Which statement uses Life-material patentability boundary without changing its institution, unit or status?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: C. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q56. Which option avoids the standard UPSC close-option trap about Life-material patentability boundary?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.

Answer: D. Explanation: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q57. Which statement correctly identifies Software-claim discipline?

A. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q58. Which option preserves the technical boundary of Software-claim discipline?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: B. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q59. Which statement uses Software-claim discipline without changing its institution, unit or status?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: C. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q60. Which option avoids the standard UPSC close-option trap about Software-claim discipline?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.

Answer: D. Explanation: The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q61. Which statement correctly identifies Access-innovation balance?

A. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(b), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q62. Which option preserves the technical boundary of Access-innovation balance?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: B. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q63. Which statement uses Access-innovation balance without changing its institution, unit or status?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: C. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(a), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q64. Which option avoids the standard UPSC close-option trap about Access-innovation balance?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Answer: D. Explanation: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q65. Which statement correctly identifies Commercialisation-chain boundary?

A. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: A. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q66. Which option preserves the technical boundary of Commercialisation-chain boundary?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: B. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q67. Which statement uses Commercialisation-chain boundary without changing its institution, unit or status?

A. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: C. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q68. Which option avoids the standard UPSC close-option trap about Commercialisation-chain boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Answer: D. Explanation: A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q69. Which statement correctly identifies Opposition-revocation-status boundary?

A. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: A. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q70. Which option preserves the technical boundary of Opposition-revocation-status boundary?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. C. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. D. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Answer: B. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q71. Which statement uses Opposition-revocation-status boundary without changing its institution, unit or status?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: C. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q72. Which option avoids the standard UPSC close-option trap about Opposition-revocation-status boundary?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Answer: D. Explanation: Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q73. Which statement correctly identifies IPAB date discipline?

A. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: A. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q74. Which option preserves the technical boundary of IPAB date discipline?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. C. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. D. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

Answer: B. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q75. Which statement uses IPAB date discipline without changing its institution, unit or status?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. C. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: C. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q76. Which option avoids the standard UPSC close-option trap about IPAB date discipline?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.

Answer: D. Explanation: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q77. Which statement correctly identifies Evidence and status firewall?

A. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. B. A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. C. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: A. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q78. Which option preserves the technical boundary of Evidence and status firewall?

A. Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. B. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. C. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. D. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Answer: B. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q79. Which statement uses Evidence and status firewall without changing its institution, unit or status?

A. A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005. B. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. C. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. D. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Answer: C. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

Q80. Which option avoids the standard UPSC close-option trap about Evidence and status firewall?

A. The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes. B. The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. C. Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. D. Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Answer: D. Explanation: Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The other options change the scientific category, institutional owner, measurement, mission rung or operating status.

PYQS AND ANSWER PRACTICE

AUDITED TOPIC-SPECIFIC PYQ OWNERSHIP

Audited ledgers route the 2019 Prelims demand on the Indian Patents Act and IPAB, the 2019 GS-III traditional-knowledge protection demand and the 2024 GS-III life-material IPR and commercialisation demand to this owner. Three representative cards preserve those routes without inventing an objective key, a patent count or a case outcome.

PYQ DEMAND CARD 1 - 2019 Prelims GS-I

Demand: Assess the routed statements concerning the Indian Patents Act and the Intellectual Property Appellate Board.

Status: The official objective key is unavailable locally. The card preserves the PYQ-date distinction: IPAB existed in 2019 but was abolished in 2021; no option letter is asserted.

Model solution: Controller and Patent Office roles: The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **IPAB date discipline:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

PYQ DEMAND CARD 2 - 2019 GS-III

Demand: Discuss how India protects traditional knowledge of medicine from pharmaceutical patenting.

Status: Verified routed Mains demand, 15 marks and 250 words; the route connects prior art, TKDL, patent-quality filters, institutions, limits and benefit-sharing concerns without inventing a case outcome.

Model solution: Invention-discovery boundary: Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter. **Section 3(d) two-limb filter:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.

Traditional knowledge and TKDL: The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Access-innovation balance:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

PYQ DEMAND CARD 3 - 2024 GS-III

Demand: Explain the world scenario of IPR for life materials and the reasons for low commercialisation of Indian patents.

Status: Verified routed Mains demand, 10 marks and 150 words; the question's filing-rank premise is not repeated as a verified current statistic, and no patent count is supplied.

Model solution: Life-material patentability boundary: Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Software-claim discipline:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every

software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Commercialisation-chain boundary:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. The solution therefore answers the routed demand without inventing an official model answer or an objective answer key.

ORIGINAL MAINS 1 - 10 MARKS

Question: Explain the patentability criteria and distinguish an invention from a discovery. Answer in about 150 words.

Model thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication.

Qualification: The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.
- Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication.

Qualification: The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Invention-discovery boundary. **Named evidence/example:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

ORIGINAL MAINS 2 - 10 MARKS

Question: Differentiate product and process patents and trace the application-to-grant ladder. Answer in about 150 words.

Model thesis: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:**

Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal

requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.
- Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.

Qualified conclusion: Claim: Product-process boundary. **Named evidence/example:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:**

Application-publication-examination-grant ladder. **Named evidence/example:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

ORIGINAL MAINS 3 - 15 MARKS

Question: Examine Section 3(d), compulsory licensing and the Bolar provision as calibrated public-interest safeguards. Answer in about 250 words.

Model thesis: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.
- Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim.
- Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.

Qualified conclusion: Claim: Compulsory-licensing boundary. **Named evidence/example:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Section 3(d) two-limb filter. **Named evidence/example:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to efficacy; enhanced efficacy does not rescue a mere new-use claim. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Bolar and research discipline. **Named evidence/example:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

ORIGINAL MAINS 4 - 15 MARKS

Question: Distinguish patents, GIs, copyright, trademarks and designs, and explain TKDL's defensive role. Answer in about 250 words.

Model thesis: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.
- Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.

Qualified conclusion: Claim: Traditional knowledge and TKDL. **Named evidence/example:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IP-instrument boundary. **Named evidence/example:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

ORIGINAL MAINS 5 - 20 MARKS

Question: Analyse patentability and governance issues concerning life materials, biotechnology and software-labelled claims in India. Answer in about 300 words.

Model thesis: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.

- Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.
- The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.
- Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Qualified conclusion: Claim: Patent bargain and criteria. **Named evidence/example:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication.

Qualification: The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Life-material patentability boundary. **Named evidence/example:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Software-claim discipline. **Named evidence/example:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication.

Qualification: The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

ORIGINAL MAINS 6 - 20 MARKS

Question: Evaluate India's IPR architecture through innovation incentives, access, technology commercialisation, opposition, revocation and institutional status discipline. Answer in about 300 words.

Model thesis: Claim: Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance. **Named evidence/example:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access;

neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication.

Qualification: The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:**

A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:**

Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named**

evidence/example: The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim: Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

Claim -> named evidence -> analysis -> qualification:

- The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.
- Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.
- A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.
- Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.
- The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.
- Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Qualified conclusion: **Claim:** Controller and Patent Office roles. **Named evidence/example:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.

Analysis: This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Access-innovation balance.

Named evidence/example: Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Commercialisation-chain boundary. **Named evidence/example:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Opposition-revocation-status boundary. **Named evidence/example:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** IPAB date discipline. **Named evidence/example:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary. **Claim:** Evidence and status firewall. **Named evidence/example:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung. **Analysis:** This fixes the scientific process, system boundary, institution, application and verified capability rung before drawing the policy implication. **Qualification:** The conclusion retains the owner's date, unit, institution, system category, legal character and development-to-deployment status boundary.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Science & Technology | **Tier:** Advanced | **GS Paper:** GS-III + GS-II + Prelims. **Core area:** Patent-law architecture, public-interest safeguards and strategic IP governance. **Grounded in:** IP India Patents Act page (<https://ipindia.gov.in/pages/patents/chapter> - verified 16 Jul 2026); Patents Act PDF used for Section 3(d), Section 84 and related text (<https://ipindia.gov.in/storage/uploads/docs-operator/73b5bf10-b04e-4f45-abef-87ff117315dc.pdf> - verified 16 Jul 2026); Basics of Trademarks page (<https://ipindia.gov.in/basics-of-trademarks> - verified 16 Jul 2026); GI introduction and filing process pages (<https://ipindia.gov.in/gi-introduction> and <https://ipindia.gov.in/gi-filing-process-step-by-step> - verified 16 Jul 2026); CIPAM National IPR Policy summary (<https://cipam.gov.in/en/about/national-IPR-policy> - verified 16 Jul 2026); WIPO PCT contracting states page and India profile references (<https://www.wipo.int/en/web/pct-system/pct-contracting-states> - verified 16 Jul 2026). **Additionally verified 2 Aug 2026:** WIPO Global Innovation Index 2025 results, India ranked 38th (<https://www.wipo.int/web-publications/global-innovation-index-2025/en/gii-2025-results.html>); Patents (Amendment) Rules, 2024 of 15 and 16 Mar 2024 as listed by IP India (<https://ipindia.gov.in/storage/uploads/docs-operator/17e7b633-4b6f-4737-9408-8c8fe72c9cfc.pdf>); CGPDTM Annual Report 2024-25 located but tables not machine-readable (https://ipindia.gov.in/storage/uploads/media/English_Annual_Report_2024-25.pdf) - no filing/grant statistic is asserted in this file. **FACT:** = source-grounded | **ANALYSIS:** = inference/analysis | **CURRENT:** = current/dated development. *Companion:* basic/17_Intellectual-Property-Rights-and-Patents.md.

1. Architecture



Analytical claim: India's IPR regime is best understood not as blanket "pro-IP" policy but as a differentiated legal architecture that protects distinct kinds of value while retaining public-interest correctives, especially in patent law.

2. Concepts and distinctions

Concept	Precise meaning
FACT: Patent	Time-bound exclusive right (20 years from filing) for an invention satisfying novelty, inventive step and industrial applicability and not excluded by s.3/s.4. ANALYSIS: Distinguish a product patent (over the substance itself, restored in India from 1 Jan 2005) from a process patent (over a route of manufacture, the sole regime for pharmaceuticals/food/chemicals in India from 1970 to 2004) - the shift that created and then constrained India's generics industry.
FACT: Trademark	Distinctive sign identifying commercial source of goods/services.
FACT: GI	Place-linked collective indication for goods whose reputation/quality is attributable to origin.
FACT: Section 3(d)	Two-limbed patentability filter. A new use or new property of a known substance, or mere use of a known process/machine, is not an invention at all ; a new form of a known substance is patentable only if it differs significantly in properties with regard to efficacy (read as therapeutic efficacy in <i>Novartis</i> , 2013). ANALYSIS: Enhanced efficacy is the exception for a new form , not for a new use - collapsing the two limbs is the standard error.
ANALYSIS: Section 3(j)	Excludes plants and animals in whole or part (other than micro-organisms), including seeds, varieties and species, and essentially biological processes - the reason plant varieties are protected under the PPV&FR Act, 2001 rather than by patent, exercising the TRIPS Art. 27.3(b) <i>sui generis</i> option.
ANALYSIS: Sections 84 / 92 / 107A	s.84 compulsory licence after three years on three grounds (public requirements unmet, price not reasonably affordable, invention not worked in India) - India's only granted case being Natco v. Bayer (2012) ; s.92 government-notified compulsory licence in national emergency, extreme urgency or public non-commercial use; s.107A Bolar exemption for regulatory-approval research plus parallel importation.
ANALYSIS: Pre- and post-grant opposition (s.25(1) and s.25(2))	A two-stage challenge system - any person before grant, an interested person within a year after - that functions as a public-interest filter on patent quality, and is one of the features most criticised by foreign rights-holders.
FACT: Compulsory licence	Statutory permission to exploit a patent under specified public-interest conditions.
FACT: PCT	WIPO-managed international filing route, not a universal patent grant.
FACT: TRIPS	WTO minimum-standards framework for IPR protection with flexibilities.
FACT: Trade secret	Confidential business information protected mainly through secrecy and legal/confidentiality mechanisms rather than ordinary registration.

3. Detailed mechanism / how it works

1. FACT: Patent law rewards inventions that are new, non-obvious and industrially applicable.
2. FACT: Section 3 exclusions narrow what can be patented, ensuring that every incremental claim does not become monopolizable subject matter.
3. FACT: Section 3(d) is especially important in pharmaceuticals because it bars patents on **new forms** of known substances that show no significant difference in efficacy, and treats a **new use** of a known substance as no invention at all.
4. FACT: Section 84 allows compulsory licensing after three years from grant if public requirements are unmet, price is not reasonably affordable or the invention is not worked in India.
5. FACT: Trademark law protects commercial distinctiveness; GI law protects origin-linked collective identity and regional reputation.
6. FACT: WIPO's PCT route lowers procedural complexity for international filing, but substantive patent rights still depend on national/regional phase decisions.

Deeper analytical layer

- ANALYSIS: Strong IPR does not mean identical treatment across all IP types; patents, trademarks and GIs solve different economic problems.
- ANALYSIS: India's patent system reflects a balancing design: it seeks innovation incentives without mechanically accepting evergreening or unaffordable exclusion.
- ANALYSIS: GI protection is also a development and rural-economy tool, not merely a legal badge.

4. Institutions and programmes

- FACT: **CGPDTM**: administrative apex within India's IP-office structure.
- FACT: **Patent Office, Trade Marks Registry and GI Registry**: specialized operational arms.
- FACT: **DPIIT / CIPAM**: policy coordination under the National IPR Policy 2016.
- FACT: **WIPO**: treaty and international-cooperation layer for PCT and broader IP governance.
- FACT: **WTO/TRIPS**: multilateral trade-law layer shaping minimum standards and flexibilities.

5. Strategic significance, applications and implementation constraints

- FACT: Patents matter for deep technology, pharmaceuticals, manufacturing, biotech and electronics.
- FACT: Trademarks support market identity, goodwill and commercialization.
- FACT: GIs help region-linked producers capture reputation value in domestic and export markets.
- ANALYSIS: **Strategic significance**: rising domestic filing and faster administration improve innovation confidence and commercial signaling.
- ANALYSIS: **Constraint 1**: enforcement costs and procedural delays can reduce the real value of formal rights.
- ANALYSIS: **Constraint 2**: smaller innovators and producer groups may struggle with legal capability, evidence-building and market monetization.
- ANALYSIS: **Constraint 3**: international treaties create opportunities, but also require administrative capacity and policy coherence.

6. Governance debates, ethics and public-interest considerations

- ANALYSIS: **Access to medicines vs evergreening**: Section 3(d) is central because it filters out weak pharmaceutical extension claims while preserving genuine invention protection.
- ANALYSIS: **Compulsory licensing debate**: it is neither anti-innovation by definition nor a routine policy substitute; it is a calibrated legal flexibility.
- ANALYSIS: **GI commercialization debate**: registration alone does not guarantee producer incomes unless branding, quality control and market access improve.
- ANALYSIS: **Trade secret gap**: unlike patents/trademarks, India lacks a standalone comprehensive trade-secret statute, so protection is more fragmented.
- ANALYSIS: **Digital governance debate**: modernization of search, examination and filing systems helps access, but quality and enforcement remain crucial.

7. Must-Know Facts for Advanced Prelims

- FACT: The Patents Act defines invention in terms of novelty, inventive step and industrial applicability.
- FACT: Section 3(d) specifically bars patents on **new forms** of known substances absent a significant difference in efficacy, and excludes **new uses/new properties** from being inventions at all; *Novartis v. Union of India* (2013) read "efficacy" as therapeutic efficacy.
- FACT: **Section 3(j)** excludes plants, animals and essentially biological processes from patentability; plant varieties are instead protected under the **PPV&FR Act, 2001**, which also preserves farmers' rights to save, use, exchange and sell farm-saved seed.
- FACT: **s.84** compulsory licence (three-year bar; three grounds; **Natco v. Bayer, 2012**) and **s.92** emergency/public non-commercial licences; **s.107A** provides the Bolar exemption and parallel importation.
- FACT: **Pre-grant (s.25(1)) and post-grant (s.25(2)) opposition** are distinct stages with different standing requirements.
- FACT: **CGPDTM administers patents, designs, trade marks and GIs - not copyright (Copyright Office/DPIIT) or plant varieties (PPV&FR Authority). WIPO administers treaties; the WTO enforces TRIPS.**
- FACT: **India ranked 38th in WIPO's Global Innovation Index 2025** - quote the edition with the rank.
- FACT: The **Patents (Amendment) Rules, 2024** are dated **15 Mar 2024**, with a second amendment on **16 Mar 2024**. ANALYSIS: Their detailed effects could not be verified from the official text at the verification date.
- FACT: Section 84 lists three compulsory-licence grounds: unmet public requirements, lack of reasonably affordable price, and non-working in India.
- FACT: Trademark registration is valid for 10 years and renewable indefinitely in further 10-year periods.
- FACT: GI registration is also renewable in 10-year blocks, but the right is origin-linked and collective in character.
- FACT: India is a contracting state of the WIPO-administered PCT system.
- FACT: The National IPR Policy 2016 explicitly emphasizes awareness, administration, commercialization and public-interest balance.

8. Advanced UPSC traps

- WRONG: **More patents always mean better innovation outcomes in every sector.** -> Patent quality, commercialization, public interest and enforcement matter too.
- WRONG: **Section 3(d) and compulsory licensing are anti-patent provisions.** -> They are balancing devices within the patent system itself.
- WRONG: **A GI is just a rural trademark.** -> A GI is a legally distinct, origin-linked collective right.
- WRONG: **PCT membership means patents automatically become global rights.** -> National or regional phase examination still determines enforceable rights.
- WRONG: **National IPR Policy is only about stronger monopolies.** -> It also speaks of awareness, modernization, commercialization and public interest.

9. CURRENT: Current anchor -> analytical use

Verified current anchor	Topic-specific analytical use
CURRENT: FY 2024-25: IP India annual report shows continued filing growth and administrative modernization. Status: reported.	Use it to show that IPR is becoming a larger innovation-governance infrastructure issue, not a niche legal topic.
CURRENT: 18 Jul 2024 and 07 Dec 2024: NIPAM event listings remained active. Status: awareness/outreach ongoing.	Useful to argue that the state is trying to broaden IP literacy, not just process elite filings.
CURRENT: 01 Jul 2026: WIPO India PCT guide validity reference. Status: current international filing guidance in force.	Helps connect India's domestic innovation ecosystem with international patent procedure.

Current as of 16 Jul 2026; verify for later updates.

11. Mains framework / angles

- ANALYSIS: Start by differentiating IP instruments.
- ANALYSIS: Explain patentability criteria and the special importance of Section 3(d).

- ANALYSIS: Add compulsory licensing and TRIPS flexibilities as public-interest correctives.
- ANALYSIS: Bring in GIs as regional-development instruments.
- ANALYSIS: Conclude with modernization, commercialization and access-to-justice/enforcement challenges.

Answer thesis: India's IPR architecture is intentionally differentiated: it protects inventions, brands and place-linked goods through distinct legal tools, while patent law itself embeds public-interest safeguards such as Section 3(d) and compulsory licensing to prevent a simplistic monopoly-maximization approach.

12. Probable questions

- ANALYSIS: **Practice Prelims:** Which of the following correctly identifies the legal distinction among patent, trademark and geographical indication?
- ANALYSIS: **Practice Mains (10 marks):** Why is Section 3(d) considered a significant public-interest feature of India's patent law? *Answer in 150 words.*
- ANALYSIS: **Practice Mains (15 marks):** Discuss the evolution of India's IPR regime with special reference to innovation promotion, GI protection and access-to-medicines concerns.

13. Study links

- FACT: Foundation companion: [basic/17_Intellectual-Property-Rights-and-Patents.md](#).
- FACT: [09_Artificial-Intelligence-Governance-and-IndiaAI.md](#) - frontier-tech capability will increasingly intersect with IP and licensing questions.
- FACT: [08_Digital-India-and-India-Stack-UPI-Aadhaar.md](#) - platform economy, branding and software ecosystems interact with IPR governance.
- FACT: [07_Defence-Indigenization-Atmanirbhar-and-Procurement.md](#) - indigenous technology development also has a patent/commercialization angle.

CONSOLIDATED REGISTER NOTES

Intellectual Property Rights and Patents: PATENTABILITY, INVENTION AND PROCEDURAL STATUS MAP

1. **Patent bargain and criteria:** A patent is a limited statutory exclusion granted in exchange for disclosure; the claimed invention must be novel, involve an inventive step, be capable of industrial application and avoid the exclusions in sections 3 and 4.
2. **Invention-discovery boundary:** Patent law protects a qualifying new product or process, not a bare discovery; finding a natural fact, known property or known use does not by itself establish an invention, and Section 3(d) supplies a specific known-substance filter.
3. **Product-process boundary:** A product patent protects the claimed product, whereas a process patent protects the claimed method; India used process-only protection for pharmaceuticals, food and chemicals from 1970 to 2004 and restored product patents from 1 January 2005.
4. **Term-territoriality boundary:** The patent term is 20 years from filing and is not indefinitely renewable; protection is territorial, so an Indian grant is not a world right and foreign protection requires national or regional routes.
5. **Application-publication-examination-grant ladder:** Filing creates an application, publication discloses it, examination occurs on request, opposition may test it, and grant follows only if the legal requirements are met; application, publication, examination and grant are not interchangeable status verbs.
6. **Controller and Patent Office roles:** The Controller General of Patents, Designs and Trade Marks is the administrative apex for patents, designs, trade marks and GIs, while the Indian Patent Office handles patent administration; CGPDTM does not administer copyright or plant-variety rights.
7. **Compulsory-licensing boundary:** Section 84 permits an application after three years from grant where public requirements are unmet, the invention is not reasonably affordable or it is not worked in India; Section 92 covers notified emergency, extreme-urgency or public non-commercial-use circumstances.
8. **Section 3(d) two-limb filter:** Section 3(d) treats a new property or new use of a known substance as no invention and allows a new form of a known substance only where it differs significantly in properties with regard to

efficacy; enhanced efficacy does not rescue a mere new-use claim.

9. **Bolar and research discipline:** Section 107A permits acts solely and reasonably related to developing and submitting regulatory information and also covers the owner-supported parallel-import limb; the Bolar route must not be inflated into an unlimited exemption for every activity labelled research.
10. **PCT-WIPO boundary:** The Patent Cooperation Treaty is administered by WIPO and provides a common international filing, search, publication and optional preliminary-examination route; national or regional offices retain control over substantive grant.
11. **TRIPS-WTO boundary:** TRIPS is the WTO minimum-standards and flexibilities framework for intellectual property, backed by WTO monitoring and dispute settlement; it neither receives ordinary patent applications nor grants patents.
12. **Traditional knowledge and TKDL:** The Traditional Knowledge Digital Library, built by CSIR with the Ministry of Ayush, makes codified traditional medicinal knowledge available as searchable prior art for defensive protection against wrongful patent claims; it is not a patent over the knowledge.
13. **IP-instrument boundary:** Patents protect qualifying inventions, copyright protects original expression rather than ideas, trademarks identify commercial source, GIs protect collective origin-linked goods, and designs protect visual appearance rather than technical function.
14. **Life-material patentability boundary:** Section 3(j) excludes plants and animals in whole or part other than micro-organisms, including seeds, varieties, species and essentially biological processes; plant varieties follow the PPV&FR Act, 2001 sui-generis route rather than ordinary patent ownership.
15. **Software-claim discipline:** The audited owners link software ecosystems to IPR but do not support a blanket proposition that every software-labelled claim is patentable or unpatentable; classify the claimed technical subject matter under the applicable patent criteria and exclusions before concluding.
16. **Access-innovation balance:** Patents can support disclosure, investment and technology transfer, while Section 3(d), compulsory licensing, opposition, Bolar use and TRIPS flexibilities protect competition, public health and access; neither maximal exclusivity nor routine override is a complete policy.
17. **Commercialisation-chain boundary:** A filing or grant is only an input: commercialisation also requires market validation, proof of concept, technology-transfer capacity, pilot and scale-up finance, industry absorption, regulatory pathways and enforceable licensing arrangements.
18. **Opposition-revocation-status boundary:** Pre-grant opposition under Section 25(1), post-grant opposition under Section 25(2) and revocation are challenge routes with different timing and legal consequences; none should be confused with rejection, expiry, lapse, compulsory licence or voluntary licensing.
19. **IPAB date discipline:** The Intellectual Property Appellate Board was a statutory appellate body when the 2019 Prelims question was asked, but the Tribunals Reforms Act, 2021 abolished specified appellate bodies including IPAB and transferred functions to courts; answer old questions at their date.
20. **Evidence and status firewall:** Application, publication, examination request, opposition, grant, working statement, licence, commercialisation, revocation and expiry are separate evidence rungs; no patent count, case outcome, market success or current legal status should be inferred from another rung.

Intellectual Property Rights and Patents: PUBLIC-INTEREST SAFEGUARDS AND IP-INSTRUMENT FIREWALLS

- Do not treat novelty, inventive step and industrial applicability as optional alternatives.
- Do not call a discovery patentable merely because it is useful.
- Do not merge product protection with a protected manufacturing process.
- Do not call a 20-year territorial patent perpetual or global.
- Do not convert filing, publication or examination into grant.
- Do not make CGPDTM the administrator of copyright or plant varieties.
- Do not describe compulsory licensing as automatic cancellation of the patent.
- Do not apply enhanced-efficacy language to rescue a mere new use under Section 3(d).
- Do not turn the Bolar provision into an unlimited general research defence.

- Do not call the PCT a world patent or WIPO a national granting office.
- Do not make TRIPS a WIPO treaty or a patent-filing route.
- Do not describe TKDL as ownership of all traditional knowledge.
- Do not treat GI, trademark, copyright, design and patent as interchangeable.
- Do not patent-label every life material; apply Section 3(j) and the PPV&FR route.
- Do not assert a blanket software-patent rule beyond the audited owners.
- Do not equate stronger exclusion in every case with better innovation.
- Do not infer commercialisation from filing or grant counts.
- Do not merge opposition, revocation, expiry and compulsory licensing.
- Do not answer the 2019 IPAB question using only its post-2021 status.
- Do not invent an objective key, case result, patent count or current status.

Intellectual Property Rights and Patents: IPR, ACCESS AND COMMERCIALISATION ANSWER SPINE

DEFINE THE DISCLOSURE-FOR-LIMITED-EXCLUSION PATENT BARGAIN

- > TEST NOVELTY INVENTIVE STEP INDUSTRIAL APPLICATION AND EXCLUSIONS
- > SEPARATE DISCOVERY INVENTION PRODUCT PATENT AND PROCESS PATENT
- > STATE 20-YEAR TERM TERRITORIALITY AND APPLICATION-TO-GRANT LADDER
- > ROUTE CGPDTM PATENT OFFICE WIPO WTO AND DATE-SENSITIVE IPAB
- > APPLY SECTION 3(d) SECTION 84 SECTION 92 SECTION 107A AND OPPOSITIONS
- > DISTINGUISH PCT FROM GRANT AND WIPO FROM WTO TRIPS
- > USE TKDL AS DEFENSIVE PRIOR ART NOT OWNERSHIP OF TRADITIONAL KNOWLEDGE
- > SEPARATE PATENT GI COPYRIGHT TRADEMARK DESIGN AND PLANT-VARIETY RIGHTS
- > CLASSIFY LIFE MATERIAL AND SOFTWARE CLAIMS WITHOUT BLANKET RULES
- > TRACE PATENT TO VALIDATION TTO PILOT FINANCE REGULATION MARKET AND ACCESS
- > CONCLUDE WITH PATENT QUALITY PUBLIC-INTEREST BALANCE AND STATUS DISCIPLINE

Intellectual Property Rights and Patents: LIFE MATERIALS, PYQ-DATE ROUTES AND LIVE-SOURCE BOUNDARY

Official IP India, WIPO, WTO and TKDL-source attempts were made on 2026-09-04. They confirm the patentability criteria, limited territorial patent bargain, PCT-national-phase boundary and TRIPS-WTO architecture where substantive text was retrieved. Exact section claims remain owner-bounded; no filing/grant count, commercialisation rate, case outcome or blanket software rule is asserted.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

High-yield use: Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

ASCII MASTER FLOW - PANEL 1/12: Patentability decision tree

CLAIMED SUBJECT MATTER -> product or process?
NOVELTY -> absent from prior art
INVENTIVE STEP -> non-obvious technical advance / economic significance
INDUSTRIAL APPLICATION -> capable of being made or used in industry
SECTIONS 3 / 4 -> excluded subject matter still fails

ASCII MASTER FLOW - PANEL 2/12: Discovery invention product process matrix

DISCOVERY -> finding; not automatically an invention
INVENTION -> qualifying new product or process
PRODUCT PATENT -> claimed thing
PROCESS PATENT -> claimed method
INDIA PHARMA / FOOD / CHEMICALS -> process-only 1970-2004; product from 01 JAN 2005

ASCII MASTER FLOW - PANEL 3/12: Term and territoriality map

FILING DATE -> 20-YEAR TERM CLOCK
INDIAN GRANT -> enforceable territorial Indian right
DIRECT / PARIS ROUTE -> selected foreign filings
PCT ROUTE -> common international application procedure
NATIONAL / REGIONAL OFFICE -> final grant decision

ASCII MASTER FLOW - PANEL 4/12: Indian patent procedure rail

APPLICATION FILED
-> PUBLICATION
-> EXAMINATION ON REQUEST
-> OPPOSITION / COMPLIANCE TEST
-> GRANT OR REFUSAL; NEVER UPGRADE AN EARLIER RUNG

ASCII MASTER FLOW - PANEL 5/12: Institution and forum router

DPIIT / CIPAM -> policy and implementation support
CGPDTM -> administrative apex
INDIAN PATENT OFFICE -> patent administration
WIPO -> PCT and treaty cooperation; WTO -> TRIPS
IPAB -> existed at 2019 PYQ date; abolished in 2021

ASCII MASTER FLOW - PANEL 6/12: Public-interest safeguard ladder

SECTION 3(d) -> patentability quality filter
SECTION 25 -> pre-grant / post-grant opposition
SECTION 84 -> three-year timing plus three grounds
SECTION 92 -> notified emergency / urgency / public non-commercial use
SECTION 107A -> regulatory-information use; not unlimited research

ASCII MASTER FLOW - PANEL 7/12: Section 3(d) twin-limb gate

KNOWN SUBSTANCE
BRANCH A -> new property / new use -> not an invention
BRANCH B -> new form -> test significant efficacy difference
THERAPEUTIC CONTEXT -> owner records therapeutic-efficacy reading
TRAP -> never transfer the new-form exception to a new-use claim

ASCII MASTER FLOW - PANEL 8/12: PCT WIPO TRIPS WTO split

PCT -> international patent-application procedure
WIPO -> administers PCT and other IP treaties
TRIPS -> minimum standards plus flexibilities
WTO -> monitoring and member-to-member dispute settlement
NONE -> automatic universal patent grant

ASCII MASTER FLOW - PANEL 9/12: Traditional knowledge protection chain

CODIFIED MEDICINAL KNOWLEDGE
-> TKDL DOCUMENTATION
-> SEARCHABLE PRIOR ART FOR PATENT OFFICES
-> RESIST WRONGFUL NOVELTY CLAIMS / BIOPIRACY
LIMIT -> defensive disclosure is not a patent or automatic benefit sharing

ASCII MASTER FLOW - PANEL 10/12: IP boundary wheel

PATENT -> invention / technical function
COPYRIGHT -> original expression, not idea
TRADEMARK -> commercial-source identifier
GI -> collective place-linked goods
DESIGN -> visual appearance, not technical function

ASCII MASTER FLOW - PANEL 11/12: Life material and software filter

PLANTS / ANIMALS / SEEDS / VARIETIES -> Section 3(j) exclusion
PLANT VARIETY -> PPV&FR sui-generis route
MICRO-ORGANISM -> not inside the stated plant-animal exclusion
SOFTWARE-LABELLED CLAIM -> apply criteria and exclusions; no blanket rule here
RULE -> classify claimed subject matter before policy argument

ASCII MASTER FLOW - PANEL 12/12: Innovation access and status spine

INCENTIVE -> disclosure + investment + licensing
TRANSLATION -> validation + TTO + pilot + finance + regulation + market
ACCESS -> Section 3(d) + CL + opposition + Bolar + TRIPS flexibilities
STATUS -> filed != published != examined != granted != commercialised
VERDICT -> quality rights, credible safeguards and translation capacity